

## Intellectual Property

This is a category of intangible rights protecting commercially valuable products of the human intellect. Unlike real property and personal property, which is often protected by means of physical security devices (such as fences and other enclosures), intellectual property is essentially protected by sets of enforceable legal rights granted to “owners” or “holders.” These legal rights are intended to solve the economic problem described by Kenneth Arrow as the “incomplete appropriability of knowledge.

Due to the fact that Intellectual Property is intangible and typically easy to copy and transport, it is difficult for business enterprises to capture the full value of investments in it (i.e., competitors can easily appropriate it). Intellectual Property rights are efforts to solve this incomplete ‘appropriability’ problem.

### Brief Comments on IP

Each time we buy such ‘protected’ items, a part of what we pay goes back to the owner as recompense for the time, money, effort and thought they put in creation of the work. This has resulted over many years in the development of industries such as the music industry growing worldwide and encouraging new talent to produce more and more original ideas and articles.

Let’s begin with a more formal definition of intellectual property, so as to build a solid foundation for later explanations of the various types of intellectual property, and then the relevant

governing international treaties. The best place to start is with a consideration of the meaning of the word property. The outstanding features that most types of property share are that the owner of the property is free to use it as she /he wishes provided the use is not against the law, and to exclude others from so using that owned item of property.

Now the term “intellectual property” is reserved for types of property that result from creations of the human mind, the intellect. Interestingly, the term intellectual property in the Convention Establishing the World Intellectual Property Organization, or “WIPO”, does not have a more formal definition. The States that drafted the Convention chose to offer an inclusive list of the rights as relating to:

“Literary, artistic and scientific works; performances of performing artists, phonograms, and broadcasts; inventions in all fields of human endeavor; scientific discoveries; industrial designs; trademarks, service marks, and commercial names and designations; protection against unfair competition; and “all other rights resulting from intellectual activity in the industrial, scientific, literary or artistic fields.” (Convention Establishing the World Intellectual Property Organization, signed at Stockholm on July 14, 1967; Article 2, viii)

For various administrative and historical reasons, intellectual property is usually dealt with under the following main headings:

- 1) Literary, artistic and scientific works e.g. books. Protection of this property is governed by laws concerning Copyright.

- 2) Performances, broadcasts e.g. concerts. Protection of this property is governed by laws concerning Copyright's Related Rights.
- 3) Inventions e.g. a new form of jet engine. Protection of inventions is covered by laws concerning Patents.
- 4) Industrial designs e.g. the shape of a soft drinks bottle. Industrial Designs may be protected by its own specialized laws, or those of Industrial Property or Copyright.
- 5) Trademarks, service marks and commercial names and designations e.g. logos or names for a product with unique geographical origin, such as Champagne. Protection is normally available under various laws. In this course the laws are covered within the Trademark module.
- 6) Protection against unfair competition. E.g. false claims against a competitor or imitating a competitor with a view to deceive the customer.

Why do Intellectual Property Rights Matter?

The first reason is that it is both just and appropriate that the person putting in the work and effort into an intellectual creation has some benefit as a result of this endeavor. The second reason is that by giving protection to intellectual property many such endeavors are encouraged and industries based on such work can grow, as people see that such works bring financial return. Intellectual property rights may also help to extend protection to such things as the unwritten and unrecorded cultural expression of many developing countries, generally known as folklore. With

such protection they may be exploited to the benefit of the country and cultures of origin.

The reason for States to enact national legislation, and to join as signatories to either (or both) regional or international treaties governing intellectual property rights include:

- To provide incentive towards various creative endeavors of the mind by offering protections;
- To give such creators official recognition;
- To create repositories of vital information;
- To facilitate the growth of both domestic industry or culture, and international trade, through the treaties offering multi-lateral protection.

#### Copyright law

This is the branch of the Intellectual Property, which provides a body of rules that govern copyright with the aim of fostering growth in the creative and cultural industries, encouraging human creativity, inspiring new talent and overall creating an enjoyable and educative environment for mankind.

Copyright is a bundle of exclusive legal rights concerned with the protection of literary and artistic works. The aim of copyright is to reward authors for their intellectual efforts and at the same time promote science, culture and the arts.

According to Article 2 of the Berne Convention for the Protection of Literary and Artistic Works, which is the oldest multilateral agreement in the area of copyright, “the expression ‘literary and artistic works’ shall include every production in the literary, scientific and artistic domain, whatever may be the mode or form of its expression, such as books, pamphlets and other writings; lectures, addresses, sermons and other works of the same nature; dramatic or dramatico-musical works; choreographic works and entertainments in dumb show; musical compositions with or without words; cinematographic works to which are assimilated works expressed by a process analogous to cinematography; works of drawing, painting, architecture, sculpture, engraving and lithography; photographic works, to which are assimilated works expressed by a process analogous to photography; works of applied art; illustrations, maps, plans, sketches and three-dimensional works relative to geography, topography, architecture or science. [...] Translations, adaptations, arrangements of music and other alternations of a literary or artistic work shall be protected as original works without prejudice to the copyright in the original work [...] Collections of literary or artistic works, such as encyclopedias and anthologies which, by reason of the selection and arrangement of their contents constitute intellectual creations shall be protected as such, without prejudice to the copyright in each of the works forming part of such collections.”

This is quite some list, but it is not exhaustive. It only refers to the most characteristic examples of copyrightable subject matter. Any creation of the mind can attract copyright protection as long

as it meets the requirements of the relevant national law. For example, new technology or technology-based works are also protected, such as computer programs, databases and multimedia works.

So the term “literary and artistic works” can be explained in terms of quite a long list but within that term it is worth looking at the term ‘works’ in more detail. It is important to remember that copyright protects ‘works’. Works represent the expression of thoughts and ideas. Ideas and thoughts as such are not protected. That would unjustifiably restrict freedom of expression, free access to information and free access to raw material, which is essential for the advancement of culture.

So, if I conceive the idea of writing a novel about a slave’s life in Ancient Rome, this idea can be freely copied by anyone. It is only when I express my story in words, either on paper or otherwise, that I get protection for that particular form of expression.

You should, however, bear in mind that copyright protection is territorial in nature. That means that a work will only attract copyright protection if it meets the legal requirements of the copyright law of the country where protection is sought. Each author has a separate copyright in each country and when his/her copyright in one country is exhausted it does not mean that all copyrights in all countries are equally exhausted.

There are two types of rights under copyright: economic rights, which allow the owner of rights to derive financial reward from the use of his works by others, and moral rights, which allow the

author to take certain actions to preserve the personal link between himself and the work. Now listen to the next audio segment and try to distinguish the various economic rights that are described.

### Copyright law in Uganda

In Uganda, it is regulated by the Copyright and Neighboring Rights Act No. 19 of 2006 (CNRA) (which repealed and replaced the Copyright Act Cap 215 of 1964), as well as the Copyright and Neighboring Rights Regulations, 2010.

The Act applies to works created by Uganda citizens or residents, works first published in Uganda irrespective of author's national or resident of any member state to WIPO, ARIPO and UNESCO (Sec 3, 81 and the 1st schedule of the Act), or a work first published in a member state to the TRIPS. In *British Northrop V Texteam*, it was held that publication takes place wherever the publisher invites the public to acquire copies not where the copies are received. Subsistence of copyright has two concerning factors; Personal and Territorial criterion. The personal criterion is based on the nationality or residence of the author or maker (qualified person). It does not matter where the work is published or made. Territorial criterion is based on the place of publication or making of the work. It must have been first published or made in the territory. The status of the author or maker is irrelevant. (See S.3, 81 Schedule I and II CNRA).

There has been a commendable effort by government exhibited in the enactment of the CNRA 2006 and CNRR 2010 for prior to that; the old law had been overtaken by modern circumstances.

## Copyright

This is that legal right granted to authors and artists to protect expressive works against unauthorized reproduction or distribution by third parties.

Expressive works are broadly defined, and include such things as books, films, music recordings and computer software. There is in fact no express limit on what material might be considered to embody protectable artistic expression. However, copyright does not extend to functional works or ideas.

This principle is often referred to as the “idea-expression dichotomy,” with the “idea” excluded from copyright protection. Under the TRIPS Agreement, the minimum term of copyright protection is the life of the author plus 50 years. However, in a number of places, including the United States and the European Union, the duration of copyright has been extended to the life of the author plus 70 years as the law may provide according to different jurisdictions.

Subject matter of copyright protection



Subject matter of copyright protection includes every

- i) Literary works
- ii) Scientific
- iii) Artistic works
- iv) Musical works
- v) Maps and technical drawings photographic works
- vi) Computer programs
- vii) Sound recordings etc.

Literary

**S 5 CNRA** provides for literary works and **S.2 CNRA** defines literary works to include novels, stories poetic work text books, and everything expressed in print or writing. Copyright law does not extend to Short combination of words, simple phrases, speeches, signatures and slogans lacking any literary compositions are not protected no matter how unique they may be.

In the case of **Hollinrakes vs. Truswell, Davey J** held that Literary works should be something that afforded information, instructions or pleasure in the form of literary enjoyment. Names Title and simple phrases have been rejected.

**Francis Day and Hunter Ltd Vs Twentieth Central case** it was held that; Names Title and simple phrases have been rejected.

In **Green vs. Broadcasting Corporation of Newzland** (1989) 2 ALLER 1056 it was held that there was no work.

**Exxon Corporation and Ors vs. Exxon Insurance Consultants International Ltd.** (1982) Ch 119 it was held the word Exxon could not amount to work. On appeal **CA** held that original literary work was a composite expression to be construed as such and not as three separate words.

Implied exempted works

Some categories of literary works may be excluded by implications

S.7 excludes public benefit work from protection

S.7(1) states that the right to protection shall not extend to the following works;

Students may consult the Act for more details.

- An enactment including an Act of Parliament Decree, Statutory Instruments etc.
- Court decisions
- A report made by the committee, Commission of inquiry,
- News of the day
- Law reports
- Written laws etc.

In **University of London Press vs. Universal Tutorial Press** (1961) 2Ch 601 the **issue** was whether examination papers fell within the meaning of literary works. it was **held** that, literary works are not limited to only works of literature but include all works expressed in print or writing other than musical or dramatic works. That copyright therefore subsisted in examination papers as original

literary works within the meaning of the Act and copyright was vested in the examiners.

Protection is conferred irrespective of the quality of the works see section 4 (1) CNRA literary works is tested against the concept of sufficient skill, labor, and judgment.

Section 4 (3) CNRA it's not enough for work to be expressed in writing or print if there is no evidence of any skill, labor applied to create the work.

Section 5 (2) literary works also cover derivative/ secondary works on existing resources provided that in turn involves literary skill labor and judgment. In **Byrne vs. Statist Company** (1914) 1 KB 622 it was held that a translation may itself constitute infringement but was an original literary work in which the plaintiff was the author, the plaintiff was the owner of the copyright therein.

see **Rose vs. Information Service Ltd** (1987) FSR 254

Musical Works

Many laws do not define musical works. Copyright Act of Zimbabwe defines it as a

“Work consisting of music but does not include any work or action intended to be sung, spoken, or performed with the music.”

To prove music, sound recording, musical composition, lyrics composition music performers must be established.

Musical works should be defined in the national laws.

Therefore, Section 5 of the CRNA defines musical works as “including musical of exclusively of any words or action intends to be sung, spoken, or performed with the music. Separate copyright exists in the lyrics and the song itself; the lyrics constitute literary works and the song (tune) is protected as musical works. **Stuart vs. Barret 1994** EMLR 488; it was held that the contribution by a drummer in a rock band to a song was recognized as part of the musical works and was therefore co- author.

**Chappell & Co. Ltd vs. Redwood HOL** held the first owner of the words was the owner of the copyright.

The distinction came up in case of **C.F.A O VS. Archibald** where it was held by the supreme court of Ghana that mere words or verses with no intelligible musical notation indicating the melody did not qualify to be called musical works.

Artistic work

Artistic works includes paintings, drawings, maps, charts, photographs, engravings, sculptures or artistic craftsmanship. Artistic merit and subject matter are irrelevant. Artistic works are protected irrespective of artistic quality and may extend to photography, sculpture, work of architecture etc.

**Creation Records vs. News Group News (TRL29.4.97)**. It was held that the process of arranging objects and members of a group to form a scene comprised in the photograph could be considered as

sculpture or a collage under the act or as a work of artistic craftsmanship. In **Metix (UK) vs. Maughan Plastics (1997) FSR718**, it was held that something which had a transient existence might nevertheless be work of sculpture.

#### Dramatic works

These include plays, opera, mime recitation pieces etc. Dramatic works are not defined by the Act but include works of Dance and mime; in *Tate vs. Full Brook* (1908) 11 KB 821. There was an alleged infringement of a dramatic piece. It was held that acts relating to dramatic copyright contemplate as the subject of protection under them, something which can be printed or published. Therefore, where there is a dramatic piece in which there is copyright as regards the verbal composition, is substance entirely different from another dramatic piece alleged to constitute an infringement of that copyright, the mere fact that accessorial matters such as scenic effects, make up of actors, “business” in the latter piece, as performed are similar to those employed in the performance of the former will not constitute infringement of the copyright therein such matters, taken by themselves.

To qualify as dramatic work, it must be a work of action that is capable of being performed. In **Creative Records vs. News Group News (TRL29.4.97)**, it was held that dramatic work must have movement, story or action and cannot be purely static.

Types of rights.

Moral Rights

Moral Rights defined under **S. 1** of the Copyright and Neighboring Act 2006 as means the right to claim ownership or authorship of performance as provided for under **SS.10** and **23** CRNRA.

**S.10** provides that

“The author of any work protected by copyright law shall have a moral right to claim authorship of that work except where it included in current events by media /or other means to have the author’s name mentioned or acknowledged each time the work the work is used and to object and seek relief if there is any distortion, mutilation, alteration or modification of the work.

The author can withdraw the work from circulation if it no longer reflects his conviction or intellectual concept and indemnify any authorized user affected by the withdrawal.

Moral rights are not assignable except in cases of enforcement. They are categorized into two that is right of paternity and right of integrity.

Paternity

This is the right of author to be made known to the public as creator of the work, i.e. mention my name if your using my work  
e.g. dissertations, writings etc.

Integrity

This is the right which prevents distortion of the work. The author prevents his work from being destroyed.

Moral rights exist independently of economic rights as they are concerned more with the work rather than commercial value only individuals have moral rights and not employees for example they cannot be assigned, disposed of by will or devolve by operation of law. Moral rights are not transferable are irrevocable.

Moral rights are also provided for under Berne convention of 1979 under **Article. 6** and **Article 5** of the WIPO Performance and Phonograms Treaty.

### **Economic rights.**

Economic rights are provided for under **S. 1** of the Copyright and Neighboring Act 2006 as a right specified under **S.9**. It provides that;

“The owner of the protected work shall have in relation to that work the exclusive right to do or authorize other persons to publish, produce and reproduce the work, distribute, perform the work in public, broadcast communicate it to the public commercially rent or sell original or copies of the work among others”.

They are provided for under **Article. 6** of the Berne convention of 1979 and Articles **8** and **Article 9** of the WIPO Performance and Phonograms Treaty.

These rights give the owner of a copyright the right to use his or her work for commercial purposes. They are transferable and can be delegated unlike moral rights. Rights that bring in money. eg sale, reproduce.

IP is money, just look at your self-everything is IP dress, hair style design etc. Economic rights are transferable e.g. when I write a book and give it to another. You go away without claiming any rights any more, you remain with moral rights.

#### ELIGIBILITY/ REQUIREMENTS FOR PROTECTION.

The laws of the country provide for the subject matter of protection as well as eligibility requirement. Gambian copyrightact provides work shall not be eligible for copyright protection unless:

- i) its original in character
- ii) It has been affixed in a defined medium
- iii) Created by citizens.

Nevertheless, Copyright Law does not operate in a vacuum. In fact, for a work to be considered copyrightable it must evidently conform to four basic principles:

- iv) (a) originality
- v) (b) non- application to ideas
- vi) (c) material form and
- vii) (d) principle de minimis non curat lex.

#### Originality

This requirement is to give an author an exclusive right of exploitation.



In relation to the requirement for originality, the term original does not have its ordinary dictionary meaning. Originality here is more concerned with the manner in which the work was created and the work need not be unique or meritorious. The true test is that the work must have originated from the author. In **Ladbroke(Football) Ltd V William Hill (Football) Ltd** [1964]1 WLR 273 at 291

**Held:** it was held that the word original only requires that the work should not be copied but should originate from the author. This definition allows for a wider scope of original works. For as long as the author labored to create the work as embodied in the 'Sweat of the brow doctrine' but not only that, that such an author involved sufficient amount of skill, labor and judgment (SSLJ) in the creation of the work, then his work can be said to be original.

Only original work is protected. There is no requirement of novelty and non-obviousness as with patents, but the work must have originated from the author. The work must involve a sufficient amount of skill, labor and judgment (SSLJ).

Unlike the novelty requirement under patent law, the concept of originality in copyright law is modest. Focus is on something one

produces as an author. Sweat of the brow alone is not enough. There has to be a creative spark.

In **Feist Publications Inc. v. Rural Telephone Services Co.**, the court held, among other things, “Original, as the term is used in copyright, means only that the work was independently created by the author (as opposed to copied from other works), and that it possesses at least some minimal degree of creativity.... the vast majority of works make the grade quite easily, as they possess some spark of creativity; there has to be some contribution by the author.

The challenge for copyright law is to reward originality and creativity, but not at the expense of protecting purely factual material and inhibiting the development of further technological inventions.

Section 4 of the Copyright and Neighboring Act 2006 provides that;

“work shall not be eligible for protection unless it’s original and reduced to material form”.

The work is original if it is the product of the independent effort of the author. This requirement is to give an author an exclusive right to exploit his work. Work for protection must have originated from the author and does not require originality per se or inventive thought but should be the work involves sufficient amount of effort, Judgment and skill. Work need only to be shown to have originated from the author it does not require original or inventive thought but only that the work should not be

copied and that the author should have expended a sufficient amount of labor, Judgment, skill and effort.

The originality that is required for copyright purposes relates to the expression and not the idea embodied therein. It must involve some creativity. **Dicks vs Brookes;**

“court held that .....so long as someone has invested sufficient skill and labor to give the resultant work a new character is termed original”.

**Creation Records Limited vs News Group Newspaper Ltd. Lord Atkinson**

said,

“it is the product of la labor, skill and capital of one man which must not be appropriated by another not the elements, the raw materials of one may use expression upon which the first have been expended. To secure copyright this product it is necessary that labor, skill and capital should be expended sufficiently....”.

The standard of originality is a question of fact or degree. Every case would depend on its particulars.

Consider the case of Hajji Ntege Ssebagala vs MTN and another in detail for this application in the Ugandan case.

**Emerson vs Davies.**

Simplicity

simplicity is not a reason to deny copyright. Expression  
newspaper vs, Liverpool daily post and... ltd. Grid and sequence

of letters business letters as held in **British water co ltd vs liquid air ltd**. Calendars, categories, contract forms directorates to mention but a few.

### Translations

Translations of literary works critical annotations and explanations have been held to be eligible for copyright protection. This was illustrated in the case of **Byrne vs statist co. (1914) 1KB 622** and in **Cummins vs Bond (1927) 1 Ch 167**

### Compilation

Compilation is essentially collection of pre-existing materials. It draws from a body of materials some of which might have existed in the public domain and for that reason the originality is satisfied by the fact of selection, arrangements organization of those materials contained in the compilation. In determining compilation courts have looked out for labor, skill evidence. The arguments upheld are though not clear cut arguments of broadcasting programs receipt books, directory etc.

**Cramps vs. Southern Information;** the issue was,

whether the label of can be described as original literary artistic works and it was held by HOL that; was the opinion that the bundle of information furnished in the respondent's dairy was common place thus the selection in the case did not constitute an original literary works.

According to **ECA E' ano products vs. Man dopes** held that the defendant is at liberty to make use of any information which was

in public domain but was not entitled to copy the plaintiff's compilation there by making use of the letters skill and judgment and saving himself the trouble and cost of assembling his own.

**b) Material form/ Fixation.**

S.4 (1) states that the author of any work specified in section 5 shall have a right of protection of the work, where work is original and is reduced to material form in whatever method irrespective of quality of the work or the purpose for which it is created.

Copyright only accrues where the work is original and is reduced to material form in any method and it doesn't matter whether the work is of poor quality or for whatever purpose. However, this is not meant to subject the author to formalities in order to afford protection but aims at aiding the process of ascertaining works.

S.4 (2) states that the protection of the author's work shall not be subject to any formality. According to 4(3), a work is original if it is the product of the independent efforts of the author.

However, copyright law in Uganda does not protect ideas, concepts, and procedures inter alia. This is in tandem with the Trade Related Aspects of Intellectual Property Rights (TRIPS) Agreement, which also provides that copyright protection shall

extend to expressions and not to ideas, method of operation or mathematical concepts.

### Idea and expression of idea dichotomy

Article 9 92) of the TRIPS Agreement provides that copyright protection shall extend to expressions and not to ideas, procedures, and methods of operation or mathematical concepts. As such; copyright law protects only the form of expression of ideas not the ideas themselves. i.e. ideas, concepts, procedures, methods or other things of a similar nature are to be protected (See sec. 6 of the Act). The creativity protected by copyright law is creativity in the choice and the arrangement of words, musical notes, colors, shapes etc. legality and quality are irrelevant. (Note that the requirement of quality under civil law is strong e.g. the work must bear the author's personality i.e. a creative effort).

This was the same view. In **Donoghue v. Allied Newspapers** [1938] 1 Ch 106 at 109

“A person may have a brilliant idea for a story, or a picture or a play, and one which appears to him to be original; if he communicates that idea to an author or an artist or a playwright, the production which is the result of the communication of the idea to the author or the artist or the playwright is the copyright of the person who has clothed the idea in form, whether by

means of a picture, a play, or a book, and the owner of the idea has no rights in that product.”

The benefit of this is to avoid immaterial claims that would in many cases be difficult to assess and also to encourage those that conceive ideas to go ahead and express them. In the same light, to promote creative works by the fact of recognizing only works that have gone past the stage of ideas and have been expressed in conspicuous ways. Fixation is required because it helps to show what is the work and helps in showing paintings and permanence.

In **Plix Products Ltd Vs Frank** (1985) 5 IPR 156, court stated that there is a distinction between the general idea or basic concept of a work and the details of form and shape which are used to transform the basic concept into concrete form. When the ideas which are essentially constructive in character are reduced to concrete form, the form they take is where copyright lies.

### **C) Principle de minimis non curat lex the law does not concern itself with trifles)**

In ascertaining whether a work is significant enough to afford copyright. In **Sinanide v la maison kosmeo** (1928) 139 LT 365, **Held:** it was held that to quote a bit of a sentence of a literary work was too small a matter on which to base a copyright infringement

action. Basically for one to sustain an action in copyright infringement, a substantial part of the work must be copied to include:

- I. Exact usage of part of the work, taken verbatim or
- II. Some reworking of the whole of it or
- III. A combination of these.

This aims at reducing frivolous claims and not opening the floodgates which situation would overwhelm the courts.

## **REGISTRATION REQUIREMENT**

There are no registration requirements for protection under copyright law, with an exception of the US. The said protection lasts for the author's life plus 50 years. Upon expiration, the work enters the public domain.

Article 5 of the Berne Convention (BC) provides that "the enjoyment and the exercise of these rights shall not be subject to any formality."

Under US law [Sec.411 (a) of the 1976 Copyright Act] registration was a mandatory requirement contrary to Art.5 (BC). This position was subsequently altered so as to strike a compromise in 1988. Sec.411(a) as amended made optional in the case of foreign works claiming copyright under the Convention. Notwithstanding, the requirement of registration remains a statutory prerequisite for US copyright owners.



It is argued that registration provides additional benefits with respect to the recovery of damages and attorneys' fees. There are further policy arguments for retaining registration:

- Complete public record of protected works
- Registration simplifies and expedites litigations**SEE CNRA**

## **AUTHORSHIP AND OWNERSHIP**

### Authorship

The question of who is an author also depends on the facts and circumstances without losing sight of the definition."

### Author

The Osborn's Concise Law Dictionary<sup>1</sup> also defines "author" as:

"..... the author is the person who creates the work. This is taken to be the producer of the sound recording, the producer and principal director of the film, the person making the broadcast, the publisher in the case of the typographical arrangement of a published edition."

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<sup>1</sup>

In UK, the Copyright Act 1956 section 35 (5) thereof which defines the word "author" in relation to sound recording or a cinematographic film to mean the maker of the recording or the film.

The definition of the word "author" under section 2 of the Copyright and Neighbouring Rights Act is not exhaustive and requires other provision for a definite meaning. **section 4 (1)** of the Copyright and Neighbouring Rights Act, protects the works of an author as listed under **section 5** of the Act. In other words, an author is associated with "works" and the creation of such works or work.

It is vital to identify the author of the work due to the following reasons: -

- i) The validity of copyright is based on the author's citizenship/domicile.
- ii) This could help in determination of persons who is entitled to the 1<sup>st</sup> ownership of the copyright in question
- iii) To determine whether there has been a transfer or transmission of a subsisting copyright.
- iv) The term literary, artistic or musical work is generally defined with reference the life of the author of the work. it

is therefore, imperative in such cases that the author of the work must first be ascertained so as to be able to ascertain whether he is living or dead and come to a conclusion on whether the copyright term is subsisting or expired already.

- v) Moral rights are conferred on the author irrespective of the transfer or separate existence of economic rights.

The author is the person who creates the work or who made the production of the work possible.

Nonetheless, David Bainbridge expounded the expression “authorship” He made an important distinction between an author and the owner. Which distinction the CNRA does not make.

Owner

A person on whom the right to exploit the copyright control vests. The owner is not necessarily the author of the work.

He expresses the view that the author of the work has moral rights while the owner of the work has economic rights. These two rights may be merged in one person but that is not always necessarily the case. Sometimes the author of the work will also be the owner of the copyright in the work.

Ownership flows from authorship, which means the person who makes the work is normally the first owner of the copyright in the work, provided he did not create the work in the course of employment.

Authorship is a question of law and fact. Authorship is not negotiated parties cannot shift the fact of Authorship by agreement. In the case of **Beggars Banquet Records vs. Cartoon Television and Another**, it was held that it should not be interpreted to stop the second defendant from contending that anyone other than the plaintiff had made the agreement.

As far as the use of devices is concerned as in the case of sound recordings the “author” is deemed to be the person by whom the arrangements necessary for the creation of the work were undertaken. The author of a sound recording is the producer according to the statutory law. Under the Ugandan law section 2 of the CNRA, 2006 defines a producer to mean the person who organizes and finances the production of an audiovisual fixation or sound recording.

There were suggestions of materials for the creation of the work does not make the person offering the suggestions an author. In the case of **Tate vs. Thomas (1921) 1 Ch 503** it was held that; the

defendants had produced the first version of the dramatic work in which the plaintiff claimed copyright. The defendant relied on the claims of one Peterman who based his claim to the work of his general involvement which indeed suggesting the title.

The court declined to accept Peterman's contributions as sufficient to sustain the claim to partake in the copyright and held that he was neither the sole author nor a joint author.

In **Walter vs Lane (1900) AC 539** House of Lords held that, the news reporter did have copyright since there was no requirement of originality in thought or language by them.

Moreover, where work is created by more than one person and no particular part of the work is identified to have been made by each person, such that the work is indistinguishable, all the authors shall be co-owners of the economic rights and moral rights relating to that work and the co-owners shall have equal rights in that work.

In essence this is **co-authorship/ Joint co-authorship:**

Consider the case of Angella Katatumba and another Vs A CODE and another.

A simple test for determining authorship in cases of more than one person where he has made contribution to the creation of the work is to identify the resultant work and ask who was responsible for providing the necessary skill and labor. Where one had an idea and clothed by another in his words or other form of expression the copyright will subsist in the person who has clothed the idea so received in the protectable term.

**Example:**

If a man employs a service of a ghost writer to write his biography based on materials supplied by the subject, the copyright in the final product would accordingly belong to the ghost writer. In contrast in the case of **Donoghue vs. Allied Newspaper Ltd** (1938) 1 Ch 106 at 109 **Farwell J** said a

“person may have a brilliant idea for a story or a picture or for a play and of which appear to him to be original, if he communicates that idea to an author or an artist or a play writer, the production which is the results of the communication of the idea to author or an artist or a play writer, is the copyright of the person who in this case the author clothed the idea in form, then the copyright will go to him who clothed the idea...”.

## Employment

### Copyright in Journalistic Works

Works made by journalists who are employed under a contract of service belong to the employer. The journalist has the right to photocopy the written work and include it in a book. For freelance and independent journalists, in the absence of an agreement, the journalist owns the copyright.

### Copy right in Commissioned works

Nevertheless, the actual author forfeits copyright in the case of works done for commission, under employment, for government or international bodies as the case may be. However, this position can be altered by an agreement to the contrary. In **Prof. George**

**W. Kakoma vs. Attorney General**, H.C.C Suit No. 197 Of 2008 Before: The Honourable Mr. Justice Yorokamu Bamwine defined Copyright as a 'set of exclusive rights granted to the author or creator of an original work, including the right to copy, distribute and adopt the work. These rights can be licensed, transferred and/or assigned. Copyright lasts for a certain time period after which the work is said to enter the public domain.'

Court in this case was of the view that:

“As a general rule, copyright in a commissioned work belongs to the author, in the absence of an express or implied term to the contrary. Where the contract is unclear as to the rights of the Commissioner to use the work, the courts may imply the grant of an appropriate right. And if the lacuna can be satisfied by the grant of a license rather than an assignment of the copyright, then the court will imply the former.”

The commissioner – ownership rule is subject to two qualifications which need to be addressed before:-

- i) The commissioned agreements must be made for valuable consideration.
- ii) Where the purpose of commissioning is expressly or by implication made known to the author at the time of agreement, the author can restrain its use for any extraneous purpose.

Court further noted that certain transactions are, valid only if effected by deed. For example, under common law and also the CNRA 2006, for the transaction to be effective in the case of an assignment of copyright or exclusive license, it must be in writing and signed by or on behalf of the present copyright owner. The



law is couched in mandatory terms. However, failure to execute a formal assignment would not ipso facto vitiate the contract.

Also consider the case of Nakide vs Bank of Uganda for the discussions of commissioned work.

### Infringement of a copyright & related rights and remedies

S.46. of the Act infringement of a copyright occurs when person without a valid transfer, license, assignment or other authorization under the act deals with the work or does any act falling within the exclusive rights of a copyright owner. Infringement includes use of work in a manner prejudicial to the honor and reputation of the authors. S.46(2). Infringements where defendants without authority from the owner, copies or uses the copyrighted materials.

Indirect infringement occurs when the defendant authorizes a third party to use copyrighted material without any authority to do so.

See: **university of new south Wales vs. Moore house**. The issue the court considered was whether the university had authored infringement was held inter alia that the university authorized the act of Brenna in making the copies in question which were infringing copies.

The substantial similarity test for infringement

The question of substantiality often arises, i.e. exactly what amount of work should be copied

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- The first thing to look at is the part taken in comparison to the copyrighted material
- The court uses a qualitative assessment not a quantitative one
- In the digital era, providers are seen as infringers, but as vehicles for infringement

See: **MP3.com v. Universal** the court held that mp3.com willfully infringed copyright owned by Universal Music when it assembled a data base of CDs and allowed its customers to download music from the internet

**In Francis Day & Hunter Ltd Vs Bron**, it was held that if the works are sufficiently/ objectively similar, this may raise a presumption of copying. There is need for a causal connection between the original and the infringing items otherwise coincidental copying is not sufficient to constitute copying and infringements extended to partial copying in relation to substantive part.

**Francis Day & Hunter v. Bron [1963] 1 Ch 587.**

“There must be present two elements: first there must be present sufficient objective similarity between the infringing work and the copyright work, or a substantial part thereof, for the former to be properly described, not necessarily identical with but as a reproduction or adaptation of the latter; secondly, the copyright work must be the source from which the infringing work is derived.”

See also; **Designers Guild Ltd. v. Russell Williams (Textiles) Ltd. [2001] 1 All E.R. 700.**

## Indirect copying

In **Plix products vs. Frank**, the issue of indirect copying was considered. It constituted a verbal description of the plaintiff's designs by the defendants. It was held that the verbal description of a copyrighted work may be a medium for indirect copying subject to certain criteria unless it is an independent creation. It was further stated that there is indirect copying of the plaintiff's copyright if there is a marked degree of similarity and deriving the parts from literary description with sufficient casual connection.

In **auto desk Vs Dyson**. It was held that a person who reproduces a set of instructions by turning the source code into an object code does not escape liability or infringement.

## Indirect copying

1. It is essential that an author's copyright is not only protected from direct infringement but also from indirect infringement.
2. The enforcement of rights against a person who authorizes the infringement of copyright acts as a deterrent not only to copyright infringers but also to associated people.
3. In light of the information technology revolution, and the implementation of the internet, the scope of copyright infringement has been exponentially increased.
4. The rate at which dissemination of information, albeit protected by copyright, has increased due to internet highlights the increased need to provide greater security for the authors.

5. The growth of the internet has seen the rise of the hacker mentality and entitlement philosophy; majority of internet users tend to think they have right to information for free, and more particularly the music.
6. See signing –Reproduction without authority.

### Limitations on Rights

Strictly speaking, the first limitation is the exclusion from copyright protection of certain categories of works. In some countries, as you have heard, works are excluded from protection if they are not fixed in tangible form; for example, a work of choreography would only be protected once the movements were written down in dance notation or recorded on videotape. In some (but not all) countries, moreover, the texts of laws, court and administrative decisions are excluded from copyright protection.

The second category of limitations on the rights of authors and other owners of copyright concerns particular acts of exploitation, normally requiring the authorization of the owner of rights, which may, under circumstances specified in the law, be done without authorization. There are two basic types of limitations in this category:

- 1) Free uses, which are acts of exploitation of works that may be carried out without authorization and without an obligation to compensate the owner of rights for the use.

2) Non-voluntary licenses, under which the acts of exploitation may be carried out without authorization, but with the obligation to compensate the owner of rights.

Examples of free uses include: the making of quotations from a protected work, provided that the source of the quotation, including the name of the author, is mentioned and that the extent of the quotation is compatible with fair practice; use of works by way of illustration for teaching purposes; and use of works for the purpose of news reporting. In respect of the right of reproduction, the Berne Convention contains a general rule, rather than explicit detailed limitations:

Article 9[2] provides that member States may provide for free reproduction in “certain special cases” where the acts do not conflict with a normal exploitation of the work and do not unreasonably prejudice the legitimate interests of the author. As noted above, numerous laws contain provisions allowing reproduction of a work exclusively for the personal, private and non-commercial use of individuals.

However, the ease and quality of this individual copying, made possible by audiotaping or videotaping and even more recent technological improvements, has led some countries to narrow the scope of such provisions. Certain legal systems allow copying but incorporate a mechanism for payment to owners of rights for the prejudice to their economic interests, though a fee imposed on sales of blank tapes and / or tape recorders.

In addition to specific free uses enumerated in national laws, the laws of some countries recognize the concept known as fair use or fair dealing, which allows use of works without the authorization of the owner of rights, taking into account factors such as the following: the nature and purpose of the use, including whether it is for commercial purposes; the nature of the work used; the amount of the work used in relation to work as a whole; and the likely effect of the use on the potential commercial value of the work.

As noted above, non-voluntary licenses allow use of works in certain circumstances without the authorization of the owner of rights, but which, by operation of law, require that compensation be paid in respect of the use. Such licenses are called “non-voluntary” because they are authorized by the law and do not result from the exercise of the copyright owner’s exclusive right to authorize particular acts. Non-voluntary licenses were usually created in circumstances where a new technology for the dissemination of works to the public had emerged, and where the national legislature feared that owners of rights would prevent the development of the new technology by refusing to authorize use of works. This was true in the Berne Convention, which recognized two forms of non-voluntary licenses: firstly, to allow the mechanical reproduction of musical works and secondly for broadcasting. It should be noted, however, that the justification for non-voluntary licenses is called increasingly into question, since effective alternatives now exist for making works available to the public based on authorizations given by the owners of rights, including in the

form of collective administration of rights. Whatever the situation in your country relating to copyright there will inevitably be situations occurring where copyright is infringed so it is important to consider the types of remedies the copyright owner can take.

## Conclusion

- It is essential that an author's copyright is not only protected from direct infringement but also from indirect infringement.
- The enforcement of rights against a person who authorizes the infringement of copyright acts as a deterrent not only to copyright infringers but also to associated people.
- In light of the information technology revolution, and the implementation of the internet the scope of copyright infringement has been exponentially increased.
- The rate at which dissemination of Information, albeit protected by copyright. They increased due to internet highlights the increased need to provide greater security for the rights of authors.
- The growth of the internet has seen the rise of the hacker mentality and entitlement philosophy, majority of internet users tend to think they have right to information for free and more particularly the music.
- See singing- reproduction without authority.

Right to perform

Under S.5 (1) (b) a copyright in a musical work shall be the exclusive right to control the public performance for payment. Other persons other than the owners and agents who wish to perform must have the consent or permission of the author otherwise it constitutes infringement. Under S.11, infringement occurs when a person does any act causing falling within the copyright without the license of the owner

### Defenses to a copyright actions.

A defendant who is sued for infringement of copyright may plead the defense of fair dealing. This provided for under sec.15 of the Act sec.9 and 46.

### FAIR USE PRIVILEGES 5(2)(a)

Fair use or fair dealing (US equivalent) is one of the statutory defences available for defendants who would otherwise be liable for infringement. It arises in the minimize use of non-substantial parts, research and study, backup copies of computer programs etc. Its objective is to strike balance between private incentives and social gains.

There is always a temptation by the defendant to say that he did not make a profit. The court is not interested in that, but rather in the fact that the copyright is not infringed.

The other defences available are where the work is for the purpose of criticism or review, reporting news or giving professional advice. The first two defences are also available



where fair dealing is made of an AV item- a sound recording, cinematograph film, sound broadcast or TV broadcast.

All use of copyright material is free and without formality. For purposes of research and study however, copying must be made in reasonable portions. In *De Garis v. Neville Jeffress Pidler Pty Ltd*, the court held that the provision of press clippings for a fee was not “research”

“Research” means a “diligent and systematic inquiry or investigation into a subject in order to discover facts or principles.”

“Study” means “application of the mind to the acquisition of knowledge as by reading, investigation or reflection.”

Factors that are used to determine fairness are;

- Purpose and character of the use
- Nature of the work or adaptation
- Possibility of obtaining the work or adaptation within a reasonable time at an ordinary commercial price
- Effect of the use upon the potential market for or value of the work or adaptation; and
- Amount and substantiality of the part copied taken in relation to the whole or adaptation.

For the success of the defence of fair use, sufficient acknowledgement of the work must be made. “....an acknowledgement identifying the work by its title or other description and, unless the work is anonymous or pseudonymous

or the author has previously agreed or directed that an acknowledgement of his or her name is not to be made, also identifying the author”.

See **Express Newspaper plc v News(uk) Ltd** where the court held that a cursory reference to the fact that the quotations came from another newspaper was not sufficient acknowledgement.

Principles involving the defence of fair dealing

Fair dealing involves questions of degree and impression; it is to be judged by the criterion of a fair minded and honest person and is an abstract concept;

Fairness is to be judged objectively in relation to the relevant purpose i.e. the purpose of criticism or review or the purpose of reporting;

Criticism and review are:

- Words of wide and indefinite scope which should be interpreted liberally
- May strongly be expressed
- Must be genuine, need not necessarily be balanced
- Must not involve an oblique or hidden motive particularly where the trade rivalry is involved.

## 2. Public interest

Public policy may dictate that certain work should not qualify for protection i.e. works that are immoral or constitute criminal offences.

### 3. Sec 14 assignment and license

The appropriate forum for an action for copyright infringement is the high court commercial division

In terms of enforcement of copyright, the act provides for collecting societies which are companies limited by guarantee

## **B) RELATED RIGHTS**

Copyright is no longer the domain of authors and artists. This is because a field of rights related to copyright has developed rapidly, called “related rights” (also known as allied rights or neighboring rights).

Related rights enjoy similar protection to that of copyrights, albeit limited and for a shorter duration.

### Assignment & Licensing

To assign is to transfer proprietary rights.

To license is to grant permission to someone to make use of your works.

Unless commercialized i.e. transform IP into services, IP is not useful.

A number of questions arise as to who is entitled to assign or transfer IPR's is joint ownership.

Joint ownership and joint authorship are different. A work of joint authorship is produced by the collaboration of two or more

people. Contributions of each party must not be separable from the other's contributions.

For joint authors' rights to be established, agreements are cardinal.

Joint ownership can rise by authorship, contract or inheritance. Joint owners are therefore not permitted to exercise their rights independent of the other. Unless contracted our joint ownership is forever.

### Assignment

Once an assignment takes effect, all rights vest in the assignee. The assignee has the right to alter the work, provided moral rights are not fringed.

### Formalities for Assignment

Must be in writing (in some instances, oral agreements to transfer will be effective in equity)

An assignment for future copyright is possible but must be in writing.

See; **Chaplain v Leslie Frewin (Publishers) Ltd [1966] 1 Ch. 71 (CA)**

An assignment was found in a contract in which a clause read "the publisher shall during the legal term of the copyright have the exclusive right of producing, publishing and selling the said works...." Held, this was sufficient to assign all future works.

### Licensing

A license is a contract and is a fundamental mechanism for commercializing IPR's.

There are three (3) types of licenses, sole, exclusive and non-exclusive.

With licenses, ownership does not pass.

Under English law, a license granted by a copyright owner is binding on every successor in title.

Licenses are usually personal to the owner and are therefore not assignable.

Alterations to the license depend on the terms of the license and the author's moral rights not to have his work subject to derogatory treatment.

## **DIGITAL CHALLENGE TO COPYRIGHT**

Copyright laws were designed in the analogue era, and as such, the digital world has posed enormous challenges because digital work has a remarkable breadth of descriptive ability, including text, audio, video, software and shapes. Traditional broadcasting disseminated information from one source, but a new medium has been introduced by digital technology i.e. convergence of broadcasting and telecommunications, both on the same network, interactive broadcasting and the internet.

### **Issues Brought By Digitisation**

Internet has resulted in ease of copying, manipulation and storage of works, which can be disseminated worldwide in a

matter of seconds. Copyright owners have consequently been lobbying for an overhaul of copyright law.

The US enacted the Digital Millennium Copyright Act of 1998 and new WIPO treaties came into force i.e. the WIPO Copyright Treaty(WCT) & WIPO Performances and Phonograms Treaty (WPPT).

In all this, three important factors have helped preserve some balance;

- i. Judicial Interpretation
- ii. New Legislation
- iii. Ability of copyright holders to find ways of applying the new technologies to generate sufficient returns and maintain creativity.

Provisions to prohibit circumvention and anti- trafficking have also been put in place to protect digital works from being infringed.

As technology advances, more and more challenges are faced by the copyright system. There is need to bring about a balance of opposing interests of copyright owners and consumers. The law must create both strong incentives to create and equally strong disincentives for hackers. Technical measures are crucial to protect copyright and provide for effective means such as search engines or web crawlers to track down offenders.

## **INTERNATIONAL PROTECTION OF COPYRIGHT & RELATED RIGHTS**

General Principles:

- National treatment
- Minimum protection
- Law of the country where protection is claimed
- Independence of law of country origin
- Dispute settlement under general rules of public international law

#### Points of Attachment

- Nationality
- Headquarters or domicile
- Place of first publication (within 30 days)
- Place where physically situated
- Place of performance/ recording
- Place of transmission

#### Reproduction Rights

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- Fixation
- Translation, adaptation
- Public performance
- Broadcasting and other communication to the public
- Resale right
- Moral rights (authorship & integrity)